

26IWUD00278 26IWUD00278

County: los-angeles

Division: Civil Law and Motion

Department: 8

Hearing date: 2026-06-24

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=ING%2C8%2C06%2F24%2F2026

Source SHA-256: e59ddef173df53417436111965c94907d64936bc9b019bb93a771a5fa594bf19

Case Number: 26IWUD00278 Hearing Date: June 24, 2026 Dept: 8

Tentative ruling on the Defendant's Motion for Summary Judgment:

"The purpose of a motion for summary judgment is to allow the court to penetrate through the parties' pleadings to ascertain whether there are triable issues warranting a trial. [Citation.] . . . Summary judgment procedures are streamlined in unlawful detainers but the motion may only be granted on the same basis as a motion under [Code of Civil Procedure] section 437c." (Alonso v. Herrera (2025) 117 Cal.App.5th Supp. 12, 18.) (Undesignated statutory references are to the Code of Civil Procedure.)

"A party is entitled to summary judgment only if there is no triable issue as to any material fact and the moving party is entitled to judgment as a matter of law. (§ 437c, subd. (c).) . . . The court ruling on a motion for summary judgment 'may only examine the pleadings in order to define the issues of which summary judgment disposes.'" (Alonso v. Herrera, supra, 117 Cal.App.5th Supp. at p. 18.) "In a civil action, the 'complaint "serves to frame and limit the issues" and "to apprise the defendant of the basis upon which the plaintiff is seeking recovery."' (Ibid.)

"Under section 1161, a tenant is guilty of unlawful detainer when he or she remains in possession of the premises, without the permission of the landlord, after defaulting in the payment of rent under the rental agreement, and fails to pay the rent due after being served with a written three-day notice stating such amount and the place at which payment is to be made. (§ 1161, subd. (2).)" (North 7th Street Associates v. Constante (2016) 7 Cal.App.5th Supp. 1, 4.) The amount of rent owed must be stated accurately. (Id. at p. 5; see Heffesse v. Guevara (2025) 108 Cal.App.5th Supp. 74, 82.) In addition, the plaintiff in an unlawful detainer action must show it has standing in that it owns the subject property or has some other enforceable right to possess it. (Income Estate LLC v. Perez (2025) 117 Cal.App.5th Supp. 1, 7.)

On June 3, 2026, the court deemed admitted the requests for admissions served on the Plaintiff by the Defendant. As a result, the Plaintiff has admitted many facts that are fatal to his action, including that he lacks standing to bring

this action, that the amount identified in the three-day notice allegedly served on the Defendant is overstated, and that the notice was never served on the Defendant. (See Alameda County Waste Management Authority v. Waste Connections US, Inc. (2021) 67 Cal.App.5th 1162, 1174 [court may take judicial notice of a party's admissions in earlier pleadings in the same lawsuit]; Evid. Code, § 452, subd. (d)(1).)

As a result, the Defendant is entitled to judgment as a matter of law, and the court GRANTS the Defendant's motion for summary judgment.